AS TO THE ADMISSIBILITY OF

Application No. 12105/86
by R.A. and W.M.
against the United Kingdom

The European Commission of Human Rights sitting in private on 13 July 1987, the following members being present:

MM. C.A. NØRGAARD, President
J.A. FROWEIN, First Vice-President
S. TRECHSEL, Second Vice-President
F. ERMACORA
E. BUSUTTIL
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.C. SOYER
H.G. SCHERMERS
H. DANELIUS
G. BATLINER
Mrs. G.H. THUNE
Sir Basil HALL
MM. F. MARTINEZ
C.L. ROZAKIS
Mrs. J. LIDDY

Mr. H.C. KRÜGER, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 12 March 1986 by R.A. and W.M. against the United Kingdom and registered on 18 April 1986 under file No. 12105/86;

Having regard to the report provided for in Rule 40 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The applicants, British citizens and civil servants, reside in London. Before the Commission they are represented by Messrs. Lawford & Co., solicitors practising in London.

The applicants rely on the facts forming the background to, and set out in, Application No. 11603/85 by the Council of Civil Service Unions and Others against the United Kingdom.

The applicants originally complained under Article 11 of the Convention that individual employees at Government Communications Headquarters (GCHQ) no longer have the right to belong to a trade union. Under Article 13 they alleged that there was no effective remedy under domestic law in respect of the alleged breach of Article 11.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 12 March 1986 and registered on 18 April 1986.

On 17 July 1986 the Commission decided, pursuant to Rule 42

para. 2 (b) of its Rules of Procedure, to give notice of the application to the respondent Government, without requesting written observations at that stage, pending the outcome of the similar application of the Council of Civil Service Unions and Others v. United Kingdom (No. 11603/85). That application was declared inadmissible by the Commission on 20 January 1987.

On 27 April 1987 the present applicants informed the Secretary that they did not with to pursue their application.

REASONS FOR THE DECISION

The Commission notes that the applicants do not wish to pursue their application. It finds no reasons of a general character affecting the observance of the Convention which necessitate the further retention of this case. Accordingly, the Commission accedes to the applicants' request to withdraw their application.

For these reasons, the Commission

DECIDES TO STRIKE THE APPLICATION OFF ITS LIST OF CASES.

Secretary to the Commission — President of the Commission

(H.C. KRÜGER) — (C.A. NØRGAARD)